

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DENNIS ANCRUM,

Plaintiffs,

-against-

THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT, NYPD OFFICER LISETTE
HENRIQUEZ, NYPD OFFICER SGT. F. BONILLA and
NYPD OFFICERS JOHN DOE 1-4,

Defendants.
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**VERIFIED
COMPLAINT**

The plaintiff, complaining of the defendants, by his attorney, David Blum, of DAVID BLUM
AND ASSOCIATES, respectfully shows to this Court, and alleges:

PARTIES

1. That the plaintiff is a resident of the City of New York, County of the
Bronx, State of New York
Georgia.

2. Upon information and belief, that at all times hereinafter mentioned,
the defendant CITY OF NEW YORK, was and still is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3. Upon information and belief, that at all times hereinafter mentioned,
the defendant CITY OF NEW YORK, its agents, servants, and employees operated,
maintained and controlled the Police Department of the City of New York, including all the
police officers thereof.

4. Upon information and belief, that at all times hereinafter mentioned,
and on or prior to the 24th day of March 2019, PO LISETTE HENRIQUEZ Shield No. 6194,

and NYPD OFFICER SGT. F. BONILLA, and NYPD Officers Jon Doe 1-4 were employed by the defendant, the CITY OF NEW YORK, as police officers.

5. Each and all of the acts of the defendants, alleged herein were done by the defendants, their agents, servants and employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state, county and city.

CONDITIONS PRECEDENT

6. That Notice of the Plaintiffs' Claim and Notice of Intention to Sue for Damages for personal injuries, emotional injury, psychological injury, associated pain and suffering, medical expenses, embarrassment, and humiliation, violation of civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the defendant CITY OF NEW YORK within 90 days after the occurrences alleged hereinafter.

7. That a 50-H hearing has was held on April 24, 2020 pursuant to Sec. 50-H of the General Municipal Law.

8. That more than thirty days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

9. That this action is commenced within one year and ninety days after the cause of action arose.

FACTS

10. That on or about the November 9, 2018 at about 10:00PM plaintiff was legally and lawfully inside of his apartment at 2111 southern Blvd apt 24H Bronx NY.

11. That plaintiff was home awaiting the arrival of his parole officer who had informed him that she was on her way to conduct a home visit.

12. At approximately 10 PM plaintiff answered a knock on the door and saw that his parole officer and approximately four other police officers with the NYPD were standing outside his door.

13. Plaintiff upon seeing the additional NYPD officers asked his parole officer if he was being arrested.

14. Concurrently with plaintiff finishing his question, one of the NYPD officers lunged at plaintiff, startling him.

15. Plaintiff instinctively and reflexively stepped back away from the violent motion of the NYPD officer.

16. Immediately without cause, warning or justification NYPD Officer Sgt. F. Bonilla fires his taser weapon at plaintiff, striking him in the chest and abdomen.

17. The impact of the prongs of the taser and resulting electric shock caused Plaintiff to lose control of his body and to scream out in pain and to fall backwards into his residence and to convulse in pain in front of his family.

18. Thereafter, Plaintiff was handcuffed.

19. Plaintiff's person was searched, and Plaintiff's room was searched.

20. Nothing of an illegal nature was found by the police on either the plaintiff's person or his room.

21. Thereafter, plaintiff was taken to St. Barnabas Hospital in a marked police vehicle to get medical treatment for the injuries inflicted upon him by the officers.

22. That at St. Barnabas Hospital, plaintiff had the prongs of the taser weapon removed with a scalpel and was treated for puncture wounds to his chest and abdomen.

23. That from the hospital Plaintiff was transported to the 48th precinct where he was placed in a holding cell and kept there for a long and unreasonable period of time, by officers of the 48th precinct, and/or other agent, servant, and/or employee of the defendant and/or defendants, and was not read his "Miranda Rights" and/or other rights guaranteed to him by the United States Constitution.

24. That, thereafter plaintiff was taken to Bronx Central Booking, where he was fingerprinted and photographed and placed in a holding cell for an additional unreasonable amount of time.

25. That thereafter plaintiff saw a judge and was released from detention.

26. That plaintiff was forced to appear in criminal court on six to eight occasions from November 2018 to November 2019, for charges against him which had no basis and were filed against him without probable cause.

27. That all the charges against the plaintiff were ultimately dismissed on or about November 21, 2019.

AS AND FOR A FIRST CAUSE OF ACTION

28. Plaintiff restates and realleges each and every allegation set forth in 1st through the 27th paragraphs as if more fully and completely set forth hereinafter.

29. That, on November 9, 2018, plaintiff, was assaulted/battered and tased by the defendant, and/or defendants by and through their agents, servants and/or employees.

30. That plaintiff was assaulted/battered and tased without justification and without cause.

31. That, the assault/battery took place at 2111 Southern Blvd. 24H, Bronx, NY, in the State of New York and other locations wherein the plaintiff, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

32. That, at all times hereinafter mentioned and on November 9, 2018, and for a time prior thereto, defendants, PO Henriquez was a New York City police officer, and/or an agent, servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and employed by the defendant, THE CITY.

33. That, at all times hereinafter mentioned and on November 9, 2018, and for a time prior thereto, defendant, Sgt. Bonilla was a New York City police officer, and/or an agent, servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and employed by the defendant, THE CITY.

34. That, the aforementioned assault and battery of the Plaintiff was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant THE CITY.

35. That, by reason of the foregoing, plaintiff was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

36. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. That, by reason of the foregoing, plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff restates and realleges each and every allegation set forth in 1st through the 37th paragraphs as if more fully and completely set forth hereinafter.

39. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, THE CITY, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, and the agents, servants and/or other employees of the defendant, THE CITY.

40. That the defendant, THE CITY, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, including but not limited to defendants Henriquez and Bonilla, and other agents, servants and/or other employees, who were employed by the defendant, THE CITY.

41. That, all of the aforementioned acts, committed by PO Henriquez were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, THE CITY.

42. That, all of the aforementioned acts, committed by Sgt. Bonilla were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, THE CITY.

43. That, the defendant, THE CITY was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, PO Henriquez, who was employed by the defendant, THE CITY.

44. That, the defendant, THE CITY, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, Sgt. Bonilla, who was employed by the defendant, THE CITY.

45. That, by reason of the foregoing, plaintiff was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

46. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

47. That, by reason of the foregoing, the plaintiff, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

48. Plaintiff restates and realleges each and every allegation set forth in 1st through the 47th paragraphs as if more fully and completely set forth hereinafter.

49. That, on November 9, 2018, plaintiff was caused to be falsely arrested and falsely imprisoned without probable cause.

50. That plaintiff was arrested without an arrest warrant.

51. That the false arrest/false imprisonment took place in 2111 southern Blvd apt 24H Bronx NY, City of New York, City and State of New York and

52. Thereafter continuing at other locations wherein the plaintiff, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

53. That, the aforementioned false arrest and false imprisonment of plaintiff was carried out by police officers and/or other servants, agents and/or employees of the defendant, THE CITY.

54. That, the aforementioned false arrest and false imprisonment of plaintiff was carried out by defendant PO Henriquez, and/or other servants, agents and/or employees of the defendant, THE CITY, while working within the scope and course of the employment with the defendant THE CITY.

55. That, the aforementioned false arrest and false imprisonment of the plaintiff, , was carried out by defendant, Sgt. Bonilla and/or other servants, agents and/or

employees of the defendant, THE CITY, while working within the scope and course of the employment with the defendant THE CITY.

56. That, by reason of the foregoing, the plaintiff was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

57. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

58. That by reason of the foregoing, plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

59. Plaintiff restates and realleges each and every allegation set forth in 1st through the 47th paragraphs as if more fully and completely set forth hereinafter.

60. That, the aforementioned false arrest and false imprisonment of plaintiff was caused due to a malicious prosecution of plaintiff without cause, without reasonable cause, and without color of the law.

61. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, THE CITY OF NEW YORK, failed to make a proper and thorough investigation of the facts, and failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff,

who was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

62. That, upon information and belief, all criminal charges against the plaintiff under Docket number 2018BX037587 were ultimately dismissed on November 21, 2019.

63. That, by reason of the foregoing, the plaintiff was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

64. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

65. That, by reason of the foregoing, the plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

66. The plaintiff, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 65, with the same force and effect as if hereinafter more fully set forth at length herein.

67. That the plaintiff did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; he was maliciously prosecuted and deprived of his

constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

68. That at all times hereinafter mentioned, defendant Henriquez was employed in his respective capacity by the defendant, THE CITY and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, THE CITY.

69. That at all times hereinafter mentioned, defendant Bonilla was employed in his respective capacity by the defendant, THE CITY and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, THE CITY.

70. Defendant, Henriquez, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant THE CITY knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, THE CITY has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

71. Defendant, Bonilla, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, THE CITY knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, THE CITY has not taken any steps or made any efforts to halt this course of conduct, to make

redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

72. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

73. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

74. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, THE CITY's custom and/or policy of arresting individuals without probable cause.

75. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, THE CITY's custom and/or policy of arresting minorities without probable cause.

76. That the deprivation of plaintiff, 's Constitutional Rights was the result of the defendant, THE CITY's custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

77. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, THE CITY.

78. That the detaining of plaintiff, without probable cause or justification was the result of customs and/or policies adopted by the defendant, THE CITY.

79. That the deprivation of plaintiff, 's Constitutional rights was the result of the defendant, ANCRUM's arrest of the plaintiff without probable cause.

80. That the deprivation of plaintiff, 's Constitutional rights was the result of the defendant, WADLOWSKI's arrest of the plaintiff without probable cause.

81. That the deprivation of plaintiff 's Constitutional Rights was a result of the defendant, THE CITY's custom and policy in failing to discipline officers for the use of excessive force.

82. That the deprivation of plaintiff, 's Constitutional rights was the result of the defendant Henriquez's use of excessive force.

83. That the deprivation of plaintiff, 's Constitutional rights was the result of the defendant Bonilla's use of excessive force.

84. That the customs and/or policies adopted by the defendant, THE CITY exhibited a deliberate indifference to the Constitutional rights of plaintiff,

85. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest,

false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

86. That by reason of the foregoing, the plaintiff was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

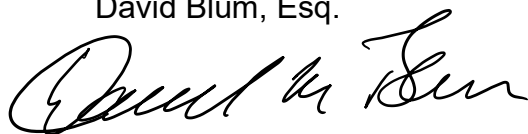
87. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

88. That, by reason of the foregoing, the plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
August 12, 2020

David Blum, Esq.

A handwritten signature in black ink, appearing to read "David Blum", written in a cursive style.

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